



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 20, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201807212 regarding Police Officer Rawn Browne, Tax No. [REDACTED] (DADS No. 2019-20663) and Police Officer Hector Vargas, Tax No. [REDACTED] (DADS No. 2019-20664)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including several surveillance videos and cell phone video evidence, and has determined that Police Officers Browne and Vargas will receive no disciplinary action for the allegation that they interfered with an individual's recording device. In this matter, the individual was asked to leave the stationhouse after refusing to stop video recording activities within the stationhouse. Upon being moved outside of the building onto the front steps of the stationhouse, the individual continued to record activities inside, through the door windows, while standing at the top of and obstructing the front access stairway that leads from the sidewalk into the stationhouse.

When other officers arrived and were in the process of escorting a prisoner and witness into the stationhouse, Officers Browne and Vargas endeavored to clear the stairway for everyone's safety. Any effort to remove the individual from the stairway, or any obstruction of his video recording that occurred while he was situated in a location that was not safe for the public to occupy, other than for access to or from the stationhouse, was reasonable and necessary to ensure the safety of all parties. The individual was not within his rights to obstruct access to the Department facility while video recording, although recording from the sidewalk would have been permitted.

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Website: <http://nyc.gov/nypd>

Therefore, Police Officer Browne and Police Officer Vargas will receive no disciplinary action for the allegation that they interfered with the individual's recording device.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'C. Wade', written in a cursive style.

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office